TREK WITH MUSSAFIRR

Terms & Conditions, Participant Agreement, and Medical Declaration Form

Name of Trek: .....

Participant Name: .....

Date of Trek: FROM: ..... TILL: .....

Date of Birth: ..... **Age:** ..... **Gender:** .....

Address: .....

City: ..... **State:** ..... **Pincode:** .....

(To be completed by participant)

Trek With Mussafirr treks take place in some remote and less-developed regions, without means of rapid evacuation, or medical supplies and facilities. In the event of an accident, illness, or other hazardous terrain, common and uncommon signs and symptoms of altitude sickness should be expected. These include, but are not limited to: sleeplessness, coughing, loss of appetite, nausea, vomiting, and muscle cramps. Severe cases of altitude sickness can include pulmonary and/or cerebral oedema. In addition, exposure to microorganisms unknown to our digestive system may cause symptoms from a wide array of gastrointestinal disorders despite the best efforts to treat drinking water and prepare food properly. A poor state of health can greatly increase the dangers and risks that can be incurred on these trips. Therefore, Trek With Mussafirr requires that all climbers and/or trekkers are examined by a physician, are properly immunized for the destination(s), and provide information.

Signature: ..... Date: .....

TERMS AND CONDITIONS OF SERVICE AND TRIP PARTICIPATION AGREEMENT

This Agreement ("Agreement") is entered into by and between Trek With Mussafirr ("TWM"), having its registered office at 383 street no. 11 Rajendra Nagar, Shiv Complex cabin no. 4, 2nd floor, Dehradun-248001, Uttarakhand (hereinafter referred to as "TWM"), and the Client (hereinafter referred to as the "Participant"). The booking of any trekking, mountaineering, adventure activity ("Trip") or any trip with TWM, constitutes acceptance of the terms and conditions set forth herein and forms a legally binding contract between TWM and the Participant.

1. Acceptance of Risk and Participant Responsibility

- The Participant acknowledges that participation in any Trip involves inherent risks, including but not limited to injury, illness, loss, or death, due to unpredictable weather, terrain, or other environmental and non-environmental conditions.
- The Participant voluntarily assumes all such risks and agrees to be solely responsible for their personal safety, fitness, and decision to participate.
- The Participant agrees to disclose any relevant medical, psychological, or physical conditions prior to booking and undertakes that they are fit and well-prepared for the selected Trip.
- TWM undertakes reasonable measures to minimize risks but cannot guarantee a risk-free experience.

2. Booking and Payments

- Booking of a Trip constitutes unconditional acceptance of this Agreement by the Participant and all persons represented by the Participant.
- The Participant is responsible for verifying the accuracy of all details, including Trip dates and personal documentation, at the time of booking.
- Payments must be made in accordance with the timelines and instructions provided by TWM. Late payments may result in cancellation of booking without refund.
- In the event of a cash refund, only the portion of the payment made in cash shall be eligible for refund in cash. Any booking made using voucher, discounts, promotional codes, or through any non-cash mode of payment shall not be eligible for a cash refund under any circumstances.
- Refunds, if applicable, shall be processed within 15-30 working days of confirmation.

Voucher Terms

- This is a non-transferable voucher.

- The voucher cannot be merged with any other offer of Trek With Mussafirr.
- The voucher is valid for Trips booked directly with Trek With Mussafirr in India.
- To avail the voucher, please use your registered phone number or e-mail ID.
- All the other terms of booking a Trip with Trek With Mussafirr are applicable to the voucher.

3. Minor Participation Policy

- Participants under 15 years of age must be accompanied by a parent or legal guardian and must submit a signed consent form.
- Participants between 15 to 18 years can come solo with the disclaimer form signed by parent/guardian.

4. Promotional Material

Photographs and videos used on TWM's website, social media, or promotional content are illustrative and do not form part of the Trip package or service guarantee.

5. Documentation and Permits

All required documentation must be submitted by the Participant prior to the Trip. TWM is not liable for failure to provide services due to incomplete, incorrect, or missing documentation.

6. Communication

- All official communication shall be made via the email ID submitted during registration. Participants must notify TWM at mussafirr1@gmail.com of any changes.
- You consent to receive communications from us by way of e-mails, phone calls, and SMSs with respect to your transactions on our Website. Users will be required to register their valid phone numbers and e-mail addresses to facilitate such communication. We may also use your e-mail address and phone number to send You updates, newsletters, changes to features of the Service, and the like to provide You better Services.

7. Insurance Advisory

TWM strongly encourages all Participants to obtain comprehensive travel insurance covering high-altitude trekking, illness, hospitalisation, evacuation, and trip cancellations. If a participant fails to obtain insurance then one is provided by default at the time of booking provided you are an Indian citizen. This insurance is a third-party insurance and solely between the Participant and the Insurance Company. TWM holds no liability or responsibility arising from this relationship.

8. Amenities and Conditions

Participants acknowledge that these regions offer limited amenities. Environmental and logistical constraints may affect comfort. TWM is not liable for discomfort arising therefrom.

9. Expenses, Rental Equipments and Exclusions

Unless specifically stated in the itinerary, the following are excluded from the Trip cost: Insurance, domestic or international airfares, visa and documentation costs, evacuation or emergency rescue expenses, excess baggage charges, personal expenses such as phone, laundry, gratuities, beverages, tips, rental equipments, trekking gears, mules, etc.

- Shoes, trek poles, head lamp, jackets, lowers, microspikes, power bank, water bottles, gloves, gaitters, etc. Costs of these equipments are not included in any package of TWM.
- Participants if needed have to rent these equipments while booking for the trip package. Prices of these rental equipments may vary.
- If a participant rents any of these equipments for their trip, they are entirely responsible for equipment damage, tears, cuts, or any harm to the equipments.
- If any damage occurs to rental equipments used or taken on rent by the Participant, the Participant is entirely responsible and must pay the penalty for the damage of the equipments.

10. Luggage and Personal Belongings

All baggage and personal belongings are the sole responsibility of the Participant. TWM shall not be liable for loss, damage, or theft.

11. Optional Activities

Optional activities not included in the Trip package are undertaken at the Participant's own risk. TWM shall not be held liable for any resulting loss, injury, or damage.

12. Force Majeure

- TWM shall not be held liable for any cancellation, delay, or service modification caused by events beyond its control including but not limited to earthquakes, landslides, strikes, curfews, war, pandemic, government restrictions, heavy rainfall or snowfall, windstorms, road blockages, trail disruption, or withdrawal of permits.
- No refunds, liability, or compensation shall arise from such Force Majeure events.

13. Itinerary and Modifications

- TWM reserves the right to modify, shorten, or cancel any part of the Trip due to transportation delays, weather, health emergencies, or other unforeseen circumstances including Force Majeure.
- Additional expenses arising from such changes shall be borne by the Participant.

14. Cancellations and Refunds

- No refunds or vouchers, partial or otherwise, shall be provided for voluntary withdrawal, non-utilisation of services, or removal from the Trip.
- If TWM cancels the Trip before arrival at the designated pick-up point due to unforeseen circumstances or Force Majeure, the Participant may choose from:
  a) An alternate Trip/date.
  b) A credit voucher valid for one (1) year.
  c) Transfer to another Trip, with cost differences payable by the Participant.
  d) If the Trip is abandoned post-arrival at the designated pick-up point, no cash refund or voucher shall be issued. The Trip Again Policy may apply at TWM's discretion.
- TWM shall not be liable for any associated travel costs such as flights, accommodation, or visa fees.
- In case of cancellation of trip by the participant due to illness, health issue or comfort issue participant has to undertake all the expenses not mentioned in the booked trek package.
- Participant hereby declare and understand that if, during the course of the trip/trek, my health deteriorates, or feel uncomfortable due to weather conditions, altitude, physical strain, accommodation, food, terrain, or for any other reason, and voluntarily decide to cancel, withdraw from, or discontinue the trip/trek at any stage, then the entire amount paid by participant for the said trip/trek shall be strictly non-refundable under all circumstances.
- Furthermore, in the event that the trip/trek involves travel from Point A to Point B, and participant choose to discontinue or exit the trip/trek at any point in between or during the trip, Participant shall bear all expenses at his/her own cost, including but not limited to transportation, accommodation, meals, beverages, porter/guide services, evacuation, or any other incidental or additional expenses mentioned in the package only.
- In such circumstances, Trek With Mussafirr shall not be held responsible or liable for any costs, losses, refunds, compensation, or consequences arising thereof.

15. Conditions to Discontinue a Trip for a Participant

- **Condition 1:** AMS Unconscious / AMS Conscious / Ill critical / Injured - unable to walk.
- **Condition 2:** High Blood pressure, Oxygen saturation (below 80%) and Heart rate higher or lower.
- **Condition 3:** Symptoms like headache, nausea, dizziness, fatigue, fast breathing, behaving (confusion).
- **Condition 4:** Unable to meet group average speed.
- **Condition 5:** Use or possession of alcohol, smoking, illegal drugs, on trails or campsites, offensive language, can cause harm, disturbance, or danger to others, misbehaving.
- No refunds or vouchers, partial or otherwise, shall be provided for non-utilisation of services, or removal from the Trip.

16. Medical Emergencies and Evacuation

- In the event of illness or injury, all related expenses including hospitalisation, doctor's fees, evacuation, or repatriation shall be borne by the Participant.
- TWM may assist with coordination but is not financially liable.

17. Third Party Services and Manpower

- TWM hires porters, guides, mule operators, and other manpower through third-party vendors. These individuals are not employees of TWM.
- TWM is not liable for non-performance, illness, misconduct, or sudden departure of any support staff.
- No refund or compensation shall be provided for loss, delay, or inconvenience caused by such manpower issues.

18. Photography, Media, Data Privacy & Usage

- By participating in the Trip, the Participant grants TWM a royalty-free, perpetual, worldwide license to use their photographs or videos for promotional purposes. If the Participant does not consent, they must inform TWM in writing at the time of booking.
- TWM collects and stores Participant data for operational and legal purposes only. Data will not be sold or shared externally except where required by law.

19. Blacklist Policy

- TWM reserves the right to blacklist any individual for misconduct, safety violations, defamation, harassment, or misuse of services.
- Blacklisted individuals will be permanently barred from all future TWM trips, offers, or collaborations. No refund or compensation will be provided for any booking made by a blacklisted person. TWM's decision is final.

20. Implied Acceptance and Waiver of Objection

Participants must communicate any service-related concerns contemporaneously to the trip leader or trip coordinator. Failure to do so and continued utilization of services shall constitute implied acceptance, waiving rights to retrospective claims or refunds on grounds of service dissatisfaction.

21. Complaints & Dispute Resolution

Complaints must be submitted via email within 7 days of Trip completion. If unresolved, the matter may be escalated to arbitration. Arbitration shall be conducted in Dehradun under Indian law. The arbitrator will be jointly appointed by both parties.

22. Governing Law & Jurisdiction

- This Agreement shall be governed by Indian law.
- All legal disputes shall fall under the exclusive jurisdiction of courts in Dehradun, Uttarakhand.

23. Miscellaneous

Trek With Mussafirr holds rights to add/remove any of the Terms and Conditions without prior notice. IN WITNESS WHEREOF, the Participants have accepted the above Terms and Conditions.

DISCLAIMER AND DECLARATION

The Trek/Expedition route in The Himalayas has its share of risks and dangers, especially in respect to the terrain, weather, high altitude, and desolate nature. Accidents on this trek can cause one to get injured, fall ill, and death too cannot be ruled out.

I hereby declare that my participation in this trek is completely voluntary, and I am fully aware of the risks involved. I will not hold Trekwithmussafirr wholly or partly responsible in case of any accident, illness, injury, or death on the trek.

Name of the participant: .....

Address: .....

Date: ..... **Signature:** .....

(Participant Signature - If 18 years of age or older)

MINORS UNDER 18 YEARS OF AGE, PARENT/GUARDIAN CONSENT

I, as the parent/legal guardian of the participant, have read and understood the terms of this agreement. I acknowledge the nature of the activity and voluntarily consent to my child's participation, accepting the associated risks. I hereby indemnify Trek With Mussafirr against prosecution for any mishappenings or unforeseen incidents arising from my ward's participation in this activity.

Parent/Guardian Name: .....

Relation: ..... **Age:** ..... **Contact No:** .....

Address: .....

Date: ..... **Signature of Parent/Guardian:** .....